

**DEPARTMENT EIGHT
JUDGE D. SCOTT DANIELS FOR WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 10, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**VALLEJO VETERANS BUILDING COUNCIL vs. STEVEN CLEMENTE, ET AL.
Case No. CU25-06895**

Motion to Continue Trial

TENTATIVE RULING:

Parties to appear.

**PENIANA TUIBUA v. JELLY BELLY CANDY COMPANY
Case No. CU25-06895**

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant JELLY BELLY CANDY COMPANY moves for summary judgment on Plaintiff PENIANA TUIBUA's complaint pursuant to the Private Attorneys General Act (the "PAGA") alleging wage and hour violations. Plaintiff pointedly asserts no claims for individual relief and brings her complaint solely in a representative capacity, for recovery of civil penalties only, as a member of the group of aggrieved employees.

UNDISPUTED MATERIAL FACTS

The following material facts are undisputed per Plaintiff's response to Defendant's separate statement of undisputed material facts ("D UMF") and Defendant's response to Plaintiff's separate statement of undisputed material facts ("P UMF"). Where a below fact is technically disputed but I feel the stated dispute is

incomplete or ineffective somehow I will note the existence of the dispute will be noted in brackets with a bold-text “**dispute**” warning to enhance visibility.

Plaintiff worked for Defendant between September 18, 2023 and June 2, 2025. (D UMF #1.) Plaintiff signed a severance agreement to end her employment with Defendant on June 5, 2025 and that agreement contained a release of all claims against Defendant. (D UMF #2-4 [**dispute**: Plaintiff states her argument that the release does not affect this case].) The severance agreement also contains a passage whereby Plaintiff agrees that she has no pending complaints or actions against Defendant and that she has been properly paid for all hours worked and received all due reimbursements. (D UMF #5 [**dispute**: Plaintiff again argues this does not defeat her case].) Plaintiff cashed her \$1,974.41 severance check received in consideration for the agreement. (D UMF #6-7.)

On April 22, 2025 Plaintiff submitted a PAGA notice through the Labor and Workforce Development Agency online portal stating alleged labor law violations against Defendant. (P UMF #1.) She filed a class action wage and hour suit against Defendant concerning those violations the same day. (P UMF #2.)

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party’s own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party’s pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Objections to Evidence. In ruling on a motion for summary adjudication the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) The court does not find any of the stated objections material to the disposition of this motion.

Standing in PAGA Action. Defendant contends that Plaintiff lacks standing to maintain a PAGA action because the undisputed material facts establish that she signed a severance agreement when she left Defendant's employ that released all her claims against Defendant. (Defendant's Undisputed Material Facts #2-4.) It argues that Plaintiff is unable to maintain any individual claim for labor law violations "personally suffered" and therefore is not an "aggrieved employee" per Labor Code section 2699, subdivision (c)(1). Plaintiff argues that the fact of the release does not change the fact that she "personally suffered" the labor law violations alleged; she simply suffered them and then released her individual legal claims for them.

The court observes there is a lack of authority on the point. *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001 states at page 1007 that "we are concerned with what a PAGA action entails as defined by [Labor Code] section 2699, subdivision (a), and not standing [under subdivision (c)(1)]." Plaintiff's cited cases all concern PAGA standards predating the 2024 amendment adding the "personal suffering" standing requirement to the definition of "aggrieved employee."

However, even if Plaintiff's construction of the PAGA were accepted Defendant prevails on summary judgment here. The severance agreement Plaintiff signed also contains a provision stating that she was properly compensated and reimbursed for all work and expenses related to employment with Defendant. (Defendant's Undisputed Material Fact #5.) On summary judgment this showing negating Plaintiff's status as a person who personally suffered alleged labor law violations shifts the burden to her to raise a triable issue of material fact in response. Plaintiff presents no evidence raising such a triable issue of material fact. There is no evidence before the court that Plaintiff suffered any of the labor law violations raised in the PAGA complaint.

Conclusion. Defendant's motion for summary judgment is granted.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002